

"Notices must be in writing, and . . . must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based." (Code Civ. Proc., § 1010; Cal. Rules of Ct., Rule 3.1110.)

Accordingly, the matter is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 9/15/2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Martinez v. Farm Labor Service of Central Cal, Inc.***
Superior Court Case No. 24CECG01231

Hearing Date: September 17, 2026 (Dept. 503)

Motion: By Plaintiff to Set Aside Dismissal

Tentative Ruling:

To grant plaintiff Marcos Galvan Martinez's motion to set aside dismissal. (Code Civ. Proc., § 473, subd. (b).)

To set a Case Management Conference for October 21, 2026, at 3:30 p.m. in Department 503.

Explanation:

Plaintiff Marcos Galvan Martinez ("Plaintiff") requests that the dismissal of the case be set aside pursuant to discretionary relief afforded under Code of Civil Procedure section 473, subdivision (b).

Pursuant to section 473, subdivision (b), relief is either mandatory or discretionary. Relief is mandatory where it is based on an attorney's affidavit of fault and the motion expressly states that mandatory relief is sought. (Code Civ. Proc., § 473, subd. (b); *Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125.) Relief is discretionary where it is based on mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b).)

The court is empowered to relieve a party "upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) "Public policy dictates that disposition on the merits be favored over judicial efficiency." (*Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 392.)

Plaintiff's counsel submits that the dismissal of the action was caused by excusable neglect. Excusable neglect has been defined as neglect that might have been the act or omission of a reasonably prudent person under the same or similar circumstances. (*Barragan v. County of Los Angeles* (2010) 184 Cal.App.4th 1373, 1382–1383.) Counsel filed an affidavit taking responsibility for the failure to appear at the trial readiness conference on May 8, 2026, due to her excusable neglect. An opposition has not been filed. Thus, the court grants Plaintiff's motion to set aside dismissal.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

